

Master Services Agreement

This Master Services Agreement ("Agreement") is entered into on 1 February 2026 ("Effective Date") between:

Supplier	Nimbus CX Ltd Registered No. 08881234 71 Harbour Street, London, E1 6AA United Kingdom
Customer	Acme Retail Ltd Registered No. 04551221 12 Market Road, Manchester, M1 2AB United Kingdom

Summary (non-binding): The Supplier will provide cloud contact centre software and related services as described in one or more Order Forms. This Agreement sets the general terms. Each Order Form is governed by this Agreement unless expressly stated otherwise.

Order of precedence: If there is a conflict, the Order Form prevails over this Agreement, and this Agreement prevails over any statement of work, unless the conflicting document states it overrides this clause.

1. Definitions

"Affiliate" means an entity that directly or indirectly controls, is controlled by, or is under common control with a party.

"Services" means the software-as-a-service platform, support, and any professional services described in an Order Form.

"Confidential Information" means information disclosed by a party that is marked confidential or would reasonably be understood to be confidential.

"Data Protection Laws" means applicable UK and EU data protection laws, including UK GDPR and the EU GDPR, as applicable.

"Fees" means the charges payable by the Customer as set out in an Order Form.

"Service Credits" means credits available for service level failures as described in clause 8.4 and Annex B.

Capitalised terms not defined above have the meaning given in the relevant Order Form or Annex.

2. Services

2.1 Provision of Services. Supplier will provide the Services in accordance with this Agreement and the applicable Order Form.

2.2 Support. Supplier will provide standard support 24x5. Critical incidents are supported 24x7. Target response times are set out in Annex B.

2.3 Subcontractors. Supplier may use subcontractors provided Supplier remains responsible for their acts and omissions.

2.4 Customer responsibilities. Customer will: (a) provide timely access to information reasonably required; (b) ensure end users comply with acceptable use; (c) maintain its own network connectivity.

3. Fees and Payment

3.1 Fees. Customer will pay Fees in the currency stated in the Order Form. Fees are exclusive of VAT.

3.2 Invoicing. Supplier will invoice monthly in arrears for subscription Fees unless the Order Form states otherwise.

3.3 Payment terms. Invoices are due within 30 days of invoice date. Late payments accrue interest at 2% per month (or the maximum permitted by law, if lower).

3.4 Price changes. Subscription Fees may increase on renewal in line with CPI (UK) plus up to 3%, with at least 60 days notice.

4. Term and Termination

4.1 Term. This Agreement starts on the Effective Date and continues until terminated. Each Order Form has its own Initial Term.

4.2 Auto-renewal. Unless an Order Form states 'No Auto-renew', each Order Form renews for successive 12 month periods. Either party may prevent renewal by giving written notice at least 90 days before the end of the then-current term.

4.3 Termination for cause. Either party may terminate this Agreement or an Order Form with immediate effect if the other party materially breaches and fails to cure within 30 days of written notice.

4.4 Termination for convenience (Customer). Customer may terminate an Order Form for convenience by giving 60 days written notice. If Customer terminates for convenience, Customer must pay: (a) all Fees due up to the effective termination date; and (b) an early termination fee equal to 25% of the remaining committed subscription Fees for the Initial Term.

4.5 Suspension. Supplier may suspend access for non-payment that remains uncured 10 days after notice, provided Supplier restores access promptly on payment.

4.6 Effects of termination. On termination, Customer will cease using the Services. Clauses 5, 6, 7, 9, 10, 11, and 12 survive.

5. Data Return and Deletion

5.1 Upon expiry or termination of an Order Form, Supplier will make Customer Data available for export for 30 days. Supplier will delete Customer Data within 90 days thereafter, unless retention is required by law.

6. Confidentiality

6.1 Each party will protect the other party's Confidential Information using at least reasonable care and will use it only to perform this Agreement.

6.2 Confidentiality does not apply to information that: (a) is public without breach; (b) was lawfully known before disclosure; (c) is independently developed; or (d) is received from a third party without restriction.

6.3 The confidentiality obligations last during the term and for 5 years thereafter (trade secrets: as long as they remain trade secrets).

7. Intellectual Property

7.1 Supplier retains all right, title, and interest in the Services, including all software, templates, and improvements.

7.2 Customer retains all right, title, and interest in Customer Data. Customer grants Supplier a limited licence to host, process, and transmit Customer Data solely to provide the Services.

7.3 If professional services create deliverables, Supplier grants Customer a non-exclusive licence to use those deliverables for its internal business purposes, subject to payment of Fees.

7.4 Restrictions: Customer will not reverse engineer the Services, except to the extent permitted by law.

8. Service Levels and Support Credits

8.1 Availability: Supplier targets 99.9% monthly availability, excluding scheduled maintenance (up to 4 hours/month with 72 hours notice).

8.2 Incident severity: Severity definitions and response targets are set out in Annex B.

8.3 Service Credits: If availability falls below 99.9% in a month, Customer may claim Service Credits as set out in Annex B. Service Credits are Customer's sole and exclusive remedy for availability failures.

8.4 Claim process: Claims must be submitted within 10 business days after the month end.

Monthly Availability	Service Credit (as % of monthly subscription Fees)
< 99.9% and ≥ 99.5%	5%
< 99.5% and ≥ 99.0%	10%
< 99.0%	20%

9. Data Protection and Security

9.1 The parties will comply with Data Protection Laws. Supplier will process Customer Data only on documented instructions from Customer.

9.2 The Data Processing Addendum in Annex C forms part of this Agreement.

9.3 Supplier will maintain appropriate technical and organisational measures, including encryption in transit and at rest, role-based access control, and annual penetration testing.

9.4 Security breach notice: Supplier will notify Customer without undue delay and in any event within 48 hours after becoming aware of a confirmed personal data breach affecting Customer Data.

10. Warranties and Disclaimers

10.1 Each party warrants it has authority to enter into this Agreement.

10.2 Supplier warrants the Services will materially conform to the published documentation. Customer's sole remedy is re-performance or, if not feasible, a refund of Fees for the non-conforming portion.

10.3 Except as stated, the Services are provided 'as is' to the maximum extent permitted by law.

11. Indemnities

11.1 Supplier will indemnify Customer against third-party claims alleging the Services infringe UK intellectual property rights, and will pay damages and costs awarded, provided Customer promptly notifies Supplier and allows Supplier to control the defence.

11.2 Customer will indemnify Supplier against third-party claims arising from Customer Data or Customer's use of the Services in breach of this Agreement.

12. Limitation of Liability

12.1 Neither party excludes liability for death or personal injury caused by negligence, fraud, or any liability that cannot be limited by law.

12.2 Subject to clause 12.1, each party's total aggregate liability arising out of or in connection with this Agreement is capped at an amount equal to the Fees paid or payable under the relevant Order Form in the 12 months preceding the event giving rise to the claim.

12.3 Subject to clause 12.1, neither party is liable for loss of profit, revenue, or indirect or consequential loss.

13. Governing Law and Jurisdiction

13.1 This Agreement is governed by the laws of England and Wales. The courts of London have exclusive jurisdiction.

Annex A - Order Form 001 (Subscription)

Order Form Date: 5 February 2026

Initial Term: 24 months from Service Start Date (auto-renews unless 'No Auto-renew' ticked).

Item	Description	Qty	Unit Price	Monthly Total
Core Contact Centre	Nimbus CX Cloud - Voice + Digital	250 seats	£85/seat	£21,250
Conversational Analytics	Speech + Text analytics	250 seats	£25/seat	£6,250
Virtual Agent Add-on	Voice virtual agent minutes bundle	200,000 mins	£0.06/min	£12,000

Special Terms (override):

A1 Liability cap (override). For this Order Form only, the liability cap in clause 12.2 is replaced with a cap equal to Fees paid or payable under this Order Form in the 6 months preceding the event giving rise to the claim.

A2 Governing law (override). For this Order Form only, the governing law is the laws of Scotland and the courts of Edinburgh have exclusive jurisdiction.

A3 Invoicing. Subscription Fees are invoiced quarterly in advance.

A4 No Auto-renew. Ticked: YES. This Order Form does not auto-renew.

Annex B - Support & Service Levels

B1 Severity levels

Severity	Definition	Target Response	Target Update Frequency
Sev 1	Total outage or critical function unavailable for all users	30 minutes (24x7)	Hourly
Sev 2	Major degradation with no workaround	2 hours (24x5)	Every 4 hours
Sev 3	Minor issue or workaround available	1 business day	Weekly
Sev 4	General query / how-to	2 business days	As agreed

B2 Exclusions: Availability calculations exclude downtime caused by Customer systems, force majeure, or unauthorised changes.

B3 Service Credits: See clause 8.3 and the table in clause 8.

Annex C - Data Processing Addendum (extract)

This Annex is an extract intended for testing multilingual and structured term extraction. In case of conflict, the English version controls.

C1 Roles. Customer is the Controller. Supplier is the Processor.

C2 Processing. Supplier will process personal data only on documented instructions and only for the purpose of providing the Services.

C3 Subprocessors. Supplier may engage subprocessors. Supplier will provide a current subprocessor list on request and will give 14 days notice of material changes.

C4 International transfers. Where transfers occur, Supplier will rely on appropriate safeguards such as Standard Contractual Clauses.

Version francaise (resume informatif)

C1 (FR) Le Client est le Responsable du traitement. Le Fournisseur est le Sous-traitant.

C3 (FR) Le Fournisseur peut engager des sous-traitants et notifiera le Client 14 jours avant tout changement important.

C5 (FR) Notification de violation: le Fournisseur informera le Client dans un delai maximal de 48 heures apres confirmation.

14. General

14.1 Assignment. Neither party may assign this Agreement without the other party's prior written consent, except to an Affiliate or in connection with a merger or sale of substantially all assets.

14.2 Force majeure. Neither party is liable for delay or failure caused by events beyond reasonable control, provided it mitigates and notifies the other party.

14.3 Notices. Notices must be in writing and sent by email and recorded delivery to the addresses on page 1.

14.4 Entire agreement. This Agreement and each Order Form constitute the entire agreement and supersede prior discussions.

14.5 Amendments. Any amendment must be in writing and signed by both parties.

Signatures

For Nimbus CX Ltd (Supplier)		For Acme Retail Ltd (Customer)	
Name:		Name:	
Title:		Title:	
Date:		Date:	
Signature:		Signature:	